Congress government under Rao had celebrated the rise of the Mujahideen in 1992 as freedom fighters. Fight against terrorism of any sort could only be ideological, he asserted. Not surprisingly, left parties had organised protest rallies against both the US actions in Afghanistan and India's support for it.[99]

Fali S. Nariman, a senior lawyer and a nominated member of the Rajya Sabha, argued that America's simplistic motto of finding bin Laden dead or alive was bound to fail. Instead, India and the US should ratify the Rome Statute of the International Criminal Court of 1998, which required ratification from 60 states (only 43 had ratified it then), and the New York International Convention for the Suppression of Terrorist Bombings of 1997. Strengthening the institutional muscle of international organisations such as the International Criminal Court (ICC) and the UN, and using proper legal channels to fight terrorism was the need of the hour. The US had already introduced the USA PATRIOT Act (Uniting and Strengthening of America by Providing Appropriate Tools to Intercept and Obstruct Terrorism) in response to the 9/11 attacks, with the aim of curbing and preventing future acts of terrorism.[100] In a similar move, India introduced the controversial Prevention of Terrorism Ordinance (POTO) on 24 October 2001, which offered sweeping powers to the state for undertaking search and arrest of individuals or groups they thought were involved in terrorism-related activities.[101] Though these laws gave the US and India operational freedom to crackdown on perceived terrorists, they were essentially curative strategies rather than preventive measures.

Vajpayee countered these allegations by arguing that unconditional support to the US, and his letter to Bush, were not signs of weakness or being a US 'sidekick'. They were, instead, portents of power and reflected India's growing confidence. Having experienced cross-border terrorism all these years, India had found an ally in the US and thought it was best to engage on areas of mutual interest on an equal basis. The government argued that even if it was incorrect of the US to bypass the UN (which was incorrect, as there was tremendous support for the US invasion, and official UN approval in the form of UNSC resolution 1386 came within weeks), but India was still consulting the UN, its NAM partners, the EU, and many other countries, and not just banking on the US.[102] India's foreign policy was based neither on nostalgia, nor on prejudice, but on national interests,